

Whistleblowing

Source: <https://www.prarulebook.co.uk/prarules/whistleblowing/03-03-2026>

Effective Date: 03-03-2026

Type: PRA Rule

Scraped: 2026-03-02 20:51

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Application and Definitions

1.1

Unless otherwise stated, this Part applies to:

1. (1) a UK Solvency II firm ;
2. (2) in accordance with Insurance General Application 3, the Society , as modified by 3;
3. (3) in accordance with Insurance General Application 3, managing agents , as modified by 3; and
4. (4) a third country branch undertaking , in accordance with 4.

1.2

In this Part, the following definitions shall apply:

protected disclosure

means a qualifying disclosure as defined in section 43B of the Employment Rights Act 1996 made by a worker in accordance with sections 43C to 43H of the Employment Rights Act 1996.

reportable concern

means a concern held by any person in relation to the activities of a firm , including:

1. (a) any matter that, if disclosed, would be the subject-matter of a protected disclosure , including a breach of any rule;
2. (b) a failure to comply with the firm's policy and procedures; and
3. (c) behaviour that has or is likely to have an adverse effect on the firm's reputation or financial well-being.

worker

means as defined by section 230(3) of the Employment Rights Act 1996 and as extended under section 43K of the Employment Rights Act 1996.

1.3

In this Part, a reference to a provision of the Employment Rights Act 1996 includes a reference to the corresponding provision of the Employment Rights (Northern Ireland) Order 1996.

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Whistleblowing

2.1

A firm must establish, maintain and implement appropriate and effective arrangements for the disclosure of reportable concerns by a person, including a firm's employee, internally through a specific, independent and autonomous channel.

2.2

The channel in 2.1 may be provided through arrangements with third parties, including social partners, subject to any applicable requirement in Conditions Governing Business 7.

2.3

A firm must inform all workers of the channel referred to in 2.1.

2.4

A firm must inform all workers :

1. (1) that they may disclose directly to the PRA or to the FCA anything that would be the subject-matter of a protected disclosure ;
2. (2) of what could constitute a protected disclosure ;
3. (3) that the PRA and the FCA are prescribed persons under section 43F of the Employment Rights Act 1996 and the effect of making a protected disclosure to the PRA or to the FCA ; and
4. (4) of the means available to make a protected disclosure to the PRA or the FCA.

2.5

A firm must ensure that nothing in its arrangements prevents or discourages any worker from making any disclosure to the PRA or the FCA before making the disclosure through the channel referred to in 2.1.

2.6

A firm must ensure that nothing in any employment contract or settlement agreement, including any other related or ancillary documentation, between the firm and a worker relating to the worker's employment with the firm, entered into after the date on which these rules come into effect, prevents or discourages the worker from:

1. (1) making a protected disclosure, including to the PRA ; and
2. (2) making a further protected disclosure connected to a protected disclosure already made under (1).

3

Lloyds

3.1

This Part applies to the Society and managing agents separately.

4

Third Country Branches

4.1

This Chapter only applies to a third country branch undertaking.

4.2

2.1 to 2.3 and 2.5 to 2.6 do not apply to a _third country branch undertaking_.

4.3

2.4 applies only in relation to a _third country branch undertaking?s_ _workers_ in the _UK_.